

Smt. Saroj vs Sarwan Singh on 15 December, 2017

HIGH COURT OF MADHYA PRADESH, JABALPUR

Conc 1584 of 2017

Smt. Saroj Singh

Versus

Sarwan Singh and others

Present : Hon. Shri Justice S.K.Gangele &
Hon. Shri Justice Anurag Shrivastava, J.J.

Shri Shyam Yadav, learned counsel for the applicant.
Shri P.P. Budhuliya, learned counsel for the respondent.

Whether approved for reporting: Yes/No.

ORDER

(15 .12.2017)

1. This contempt petition has been filed for violation of the order dated 24.6.2014 passed in F.A. No. 476 of 2014. The respondent has solemnized the second marriage inspite of the interim order passed by this court. The Division Bench of this court passed the following interim order on the aforesaid date :-

"In the meanwhile, keeping in view the provisions of Section 15 of Hindu Marriage Act, 1955, the respondent is restrained from contracting second marriage, during the pendency of this appeal."

2. As per petitioner itself, the respondent performed marriage on 14.6.2014, i.e. prior to passing of interim order dated 24.6.2014 by this court. Section 15 of Hindu Marriage Act prescribes when a person can remarry after passing a decree of divorce. The aforesaid Section reads as under :-

"15. Divorced persons when may marry again :- When a marriage has been dissolved by a decree Conc. 1584 of 2017 Smt. Saroj Vs. Sarwan Singh of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again."

3. In the present case admittedly the respondent has performed second marriage before passing of interim order dated 24.6.2014 , hence, in our opinion, the contempt petition is not maintainable because no contempt has been committed by the respondent. However, the petitioner is at liberty to file any other proceeding for violation of Section 15 of Hindu Marriage Act 1955, if there is any. With these observation, this contempt petition is disposed of.

4. No order as to costs.

(S.K. Gangele)
Judge

(Anurag Shrivastava)
Judge

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